

FEDERAL MARITIME COMMISSION

YAKOV KOBEL and VICTOR BERKOVICH,

Complainants,

v.

HAPAG-LLOYD AMERICA, INC., LIMCO
LOGISTICS, INC., and INTERNATIONAL
TLC, INC.,

Respondents.

Docket No. 10-06

SETTLEMENT AGREEMENT

This settlement agreement is entered into between Complainants, by and through their attorney, Donald P. Roach and Respondent, Limco Logistics, Inc. (Limco) by and through its president, Michael Lyamport and its attorney, Jonathan Cooper on the date set forth below.

WHEREAS, Complainants have filed a claim with the Federal Maritime Commission (FMC) under the Shipping Act of 1984 against Respondent Limco Logistic, Inc. and also, International TLC (ITLC), and

WHEREAS, the FMC awarded to Complainants a reparations award against both Limco and ITLC jointly and severally in the sum of \$129,035.29 which became final on July 25, 2016, and

WHEREAS, Complainants have filed a petition for attorney's fees with the FMC in this proceeding and Respondents Limco and ITLC have filed objections to said petition for attorney's fees, and

WHEREAS, Complainants and Limco have reached an agreement regarding resolving the remaining issues between Complainants and Limco as to the reparations award and pending attorney fee proceedings against Limco only,

NOW THEREFORE, Complainants and Limco Logistics, Inc. mutually agree to the following terms and conditions:

[REDACTED]

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[REDACTED]

3. Complainants and Limco agree to a Stay of Complainants' petition for attorney's fees as to Limco only pending the payment of the settlement agreement as set forth above.

4. Upon full payment of the above sum by Limco, Complainants will dismiss their claim of attorney's fees as to Limco only. The sum paid by Limco pursuant to this settlement agreement shall be a partial satisfaction of the reparation award against Limco.

5. Complainants agree not to pursue any enforcement of reparations against Limco only pending the compliance of the terms of this settlement.

6. [REDACTED] Complainants will agree to a covenant not to execute on the remaining sums on the reparations award as to Limco and release of further liability as to Limco only on the claim for attorney fees in a form satisfactory to the parties. Complainants will notify the FMC upon completion of the settlement agreement and file a motion to dismiss petition for attorneys fees as to only Limco Logistics, Inc.

1 7. In the event that Limco defaults on any of the above payments, Complainants are
2 entitled to immediately pursue and enforce their claim for reparations and attorney's fees
3 against Limco, including enforcement action on Limco's bond.

4 8. In the event of default, Complainants will notify the FMC and request termination
5 of the stay of the attorney fee proceeding.

6 9. In event of default by Limco Logistics, Complainants will be entitled to retain any
7 payments made by Limco and said sums will be applied as payment towards the reparation
8 award and/or attorney's fee award against Limco.

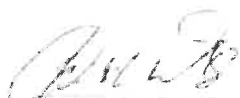
9 10. This agreement between Complainants and Limco does not apply to International
10 TILC. Further, this agreement is contingent upon Complainants preserving any and all
11 reparations award, claims and rights, including attorney's fees, against ITLC, except that any
12 payments made by Limco will be a credit as to the reparations award against Limco and ITLC.

13 11. Limco agrees not to pursue any appeal of the reparations award in favor of
14 Complainants, nor any challenge to the petition for attorney's fees as to ITLC.

15 The parties have set their signatures on the below date and time:

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18 Victor Berkovich

03/24/17
Date

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21 Yakov Kobel

03/24/17
Date

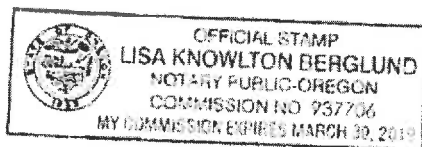
22 Limco Logistics, Inc.

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25 By: Michael Lyampert
26 President of Limco Logistics, Inc.

3/28/17
Date

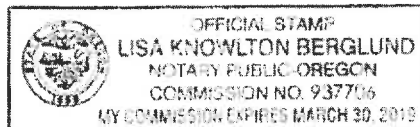
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Acknowledged before me this 24 day of March, 2017 by Victor Berkevich.



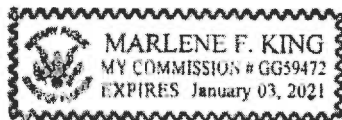
[Signature]
Notary Public for Oregon

Acknowledged before me this 24 day of March, 2017 by Yakov Kobel.



[Signature]
Notary Public for Oregon

Acknowledged before me this 27 day of March 2017 by Michael Lyamport on behalf of Linco Logistic, Inc.



[Signature]
Notary Public for

Approved as to form.

[Signature]
Donald P. Roach, OSB 75317
Attorney for Complainants

Date: March 24, 2017

[Signature]
Jonathan Cooper
Attorney for Respondent Linco Logistics

Date: 3/31/17